

JUSTIFICATION REVIEW DOCUMENT
FAR PART 16.505 EXCEPTION TO FAIR OPPORTUNITY JUSTIFICATION
For Actions Exceeding the Simplified Acquisition Threshold (SAT)

Programs/Equipment: Army Research Laboratory (ARL) Information Technology (IT) Modernization Support Services – Three (3) Month Bridge Extension for Task Order (TO) W911QX19F0075

Authority: 10 U.S.C. 3406(c)(3) as implemented by FAR 16.505(b)(2)(i)(C) – The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

Amount: [REDACTED]

Prepared by:

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Date: 03/06/2025

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DSN: [REDACTED]
Date: 03/06/2025

Requirements:

[REDACTED]
Email: [REDACTED]

DSN: [REDACTED]
Date: 03/06/2025

Controlled by: US Army
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CUI Category: General Procurement & Acquisition
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POC: [REDACTED]

CUI

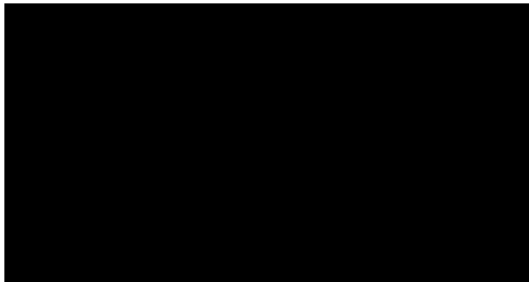
Control No:



Reviews

I have reviewed this justification and find it adequate to support an exception to fair opportunity.

Legal Counsel:



CUI

**FAR Part 16 Exception to Fair Opportunity Justification
For Actions Exceeding the Simplified Acquisition Threshold (SAT)**

1. Contracting Activity: U.S. Army Contracting Command – Aberdeen Proving Ground (ACC-APG), Adelphi Contracting Division, (CCAP-MDI), 2800 Powder Mill Road, Adelphi, MD 20783.

2. Description of Action: The U.S. Army Combat Capabilities Development Command (DEVCOM) Army Research Laboratory (ARL) Chief Information Office (CIO) requests a modification to hybrid Cost and Cost Plus Fixed Fee (CPFF) Task Order (TO) W911QX19F0075 with Agile Defense Inc., located at 11600 Sunrise Valley Drive, Suite 440, Reston, Virginia 20191-1425. The requested three (3) month bridge extension will allow for the continuation of [REDACTED] Information Technology (IT) Modernization Support Services while the re-compete effort to be awarded. The Government projects award for 12 March 2025 and [REDACTED] will be used.

 X An acquisition plan is not required because this procurement either does not meet the threshold at Defense Federal Acquisition Regulation Supplement 207.103(d)(i), or is an R&D acquisition and does not meet the definition of services in 10 U.S.C. 4501(d)(2).

3. Description of Supplies/Services: The Army Research Laboratory (ARL) Chief Information Office (CIO) requires a three (3) month bridge extension to maintain [REDACTED] IT Modernization Support Services while the re-compete effort can be awarded. The services provided under the subject task order, W911QX19F0075, support ARL, ARL's customers, and the Data Analysis Center (DAC) by providing the full range of IT Modernization services including help-desk support, IT consulting support, training support, migration and modernization implementation, and on-site project support, on both classified and unclassified systems. The scope of services required under this order encompasses overall IT support services for ARL, its customers, and DAC across its sites to include all tasks necessary to ensure effective operations and delivery of projects in a timely manner. These services are considered highly specialized because they support ARL as a Government research facility and require innovative approaches to [REDACTED]. These specific challenges increase the complexity of identifying and obtaining qualified service vendors, as the IT solutions which ARL requires are non-commercial in nature. The proposed modification would retain the same IT Modernization Support Services that are currently provided under the task order by the incumbent, Agile Defense Inc. As such, the existing scope of services and support areas under the order will not change.

The Period of Performance (PoP) of the current contract concludes on 14 March 2025. The requested modification would extend the PoP by three (3) months and increase the task order ceiling by [REDACTED] from [REDACTED] to [REDACTED]. The following Contract Line Item Numbers (CLINs), their associated costs, and PoPs would be incorporated as a result of this modification:

CLIN	Description	Type	Period of Performance (PoP)	IGE
0021	IT Services Operations	CPFF	15 March 2025 to 14 June 2025	[REDACTED]
0022	IT Projects	CPFF	15 March 2025 to 14 June 2025	[REDACTED]
0023	Travel	COST	15 March 2025 to 14 June 2025	[REDACTED]
TOTAL				[REDACTED]

The Independent Government Estimate (IGE) was developed by evaluating the requirements in the current Task Order PWS and the associated costs based upon similar direct labor positions under the subject task order, W911QX19F0075, for IT Subject Matter experts. Additionally, the Government evaluated a general sampling of current market hourly direct labor rates for similar direct labor categories listed within General Services Administration (GSA) website. Each direct labor position is estimated with both hourly and yearly rates/costs, as well as how many hours each year.

4. Authority Cited: 10 U.S.C. 3406(c)(3) as implemented by FAR Part 16.505(b)(2)(i)(C) – The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

5. Reason for Authority Cited: The proposed bridge extension modification is a one (1) time requirement that is a logical follow-on to the services currently being provided under task order W911QX19F0075. The original task order was issued as a Total 100% Small Business set-aside using the Army Computer Hardware, Enterprise Software and Solutions (CHESS) ITES-3S Multiple Award (MA) IDIQ contract vehicle from 27 March 2019 to 29 April 2019, which provided Fair Opportunity in accordance with (IAW) FAR 16.505(b)(1). The task order was issued as a new requirement in 2019, and no previous order was issued using sole source or limited source procedures. On 24 April 2024, the Government issued Task Order Request (TOR) W911QX24R0005, the re-compete effort to the current task order, as a competitive 100% Small Business under the CHESS ITES-3S contract vehicle IAW FAR 16.505(b)(1). The TOR had an original solicitation closing date of 29 May 2024 with an amended solicitation closing date of 3 June 2024 to provide responses to industry questions. The TOR received [REDACTED] proposals. Technical evaluations of the proposals have been completed and discussions have been conducted. Post-Discussion evaluations are ongoing. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

As noted in Section 9, this requirement has a lengthy history of protests, albeit unsuccessful. The current contract W911QX19F0075 received one (1) GAO level protest (B-418189.1) from Criterion Systems, Inc. that was partially dismissed before being withdrawn on 21 November 2019. The predecessor contract W911QX15F0014 received two (2) GAO level protests (B-411459; B-411459.2; B-411459.3; B-411459.4; B-411459.5; B-411459.6) from Hygeia Solutions Partners, LLC and STG, Inc. that were ultimately denied on 30 July 2015. The Government must ensure that the Source Selection is conducted with the lessons learned from prior protests for the follow-on requirement. In granting a bridge extension, the Government is given additional time for this purpose and the risk of protest is subsequently reduced. In addition, the proposed three (3) month bridge extension ensures there is no break of service for ARL's IT Modernization Support Services while the Source Selection can be completed and the follow-on contract can be awarded. This timeline is shown in the updated milestone table below.

[REDACTED]

[REDACTED]

A bridge extension awarded to the incumbent, Agile Defense Inc., is a logical follow-on to the current task order. As stated, the proposed modification would retain the same IT

Modernization Support Services that are provided by the incumbent under the current task order. To date, the incumbent has fulfilled the Government's requirements for this effort without any performance issues. In fact, since the PoP began on 01 November 2019, the incumbent has provided a high-quality level of IT Modernization Services to ARL that has never been accomplished by any of the preceding Contractors for this requirement. Agile Defense Inc.'s positive performance in the current task order demonstrates its ability to continue providing the required services in the interim while the re-compete effort can be awarded. In addition, Agile Defense Inc. has institutional knowledge of the current requirements. The incumbent personnel have gained unique expertise and familiarity with ARL's current IT environment and the future-state IT environment ARL is working towards. Agile Defense Inc.'s current employees and key personnel have gained the knowledge and skillsets needed to ensure successful continuity of services. An example of a task which Agile Defense is currently performing that would be interrupted is the [REDACTED]

[REDACTED] Agile Defense possesses the specialized knowledge of internal ARL operations and qualified personnel to [REDACTED]. Specifically, Agile Defense is currently [REDACTED]. In a scenario where IT Support Services would cease, [REDACTED]

Nonetheless, if an award to another vendor was pursued, it would result in [REDACTED]

while a new vendor learned the established processes and procedures. Furthermore, it is expected that a new vendor would experience unprecedented attrition for such a short term bridge as individuals would not be willing to accept positions where the underlying contract were only for three (3) months. This attrition would result in a sharpened learning curve of a new vendor and would lead to [REDACTED]. The timeframe of a new short term contract would cause major disruptions and the support would be insufficient to [REDACTED] due to inability to obtain the required credentials. It is not feasible to transition from Agile Defense to another vendor and then once again to a new contract vehicle as it would impose significant burden to the personnel under contract, ARL IT staff, services offered, and the customer/end user.

In summary, the re-compete order requires more time to complete, therefore creating a

need for an extension of the current task order with Agile Defense, as they are the only source that would be able to provide the IT Services needed in the timeframe available. If ARI were to compete this extension [REDACTED]

6. Efforts to Obtain Competition: In accordance with FAR 5.202(a)(6), the proposed contract action will not be synopsisized. As required by FAR 16.505(b)(2)(ii)(D) the notice and justification will be published within 14 days of award.

a. **Effective Competition:** Effective competition is not possible for this proposed bridge action due to the urgent need for continued IT Modernization Support Services, which cannot be delayed without disrupting [REDACTED]. A competitive bridge extension would introduce significant transition risks and delays, making it impractical to consider alternative vendors at this time.

b. **Subcontracting competition:** The subject order was placed under the Computer Hardware, Enterprise Software and Solutions (CHESS) Information Technology Enterprise Solution Services (ITES-3S) Multiple Award (MA) Indefinite Delivery Indefinite Quantity (IDIQ) contract; thus, an order does not require a separate subcontracting plan in accordance with FAR 19.705-2(e). The subcontracting plan approved at the MA IDIQ level is sufficient. However, an Economically disadvantaged women-owned small business (EDWOSB) does serve as a subcontractor under the task order.

7. Actions to Increase Competition: The need for the continued IT Modernization Support Services is so urgent that providing opportunities for competition for the subject modification would result in [REDACTED]

[REDACTED] The CIO will continue to conduct extensive market research to identify other sources with similar capabilities and will continually survey the marketplace in order to determine whether any other source has emerged that can fulfill the Government's requirements. Efforts to increase competition shall continue to be made for re-compete contracts for the IT Modernization Support Services requirement as evidenced by the Government issuing Task Order Request (TOR) W911QX24R0005 as a competitive 100% Small Business under the Computer Hardware, Enterprise Software and Solutions (CHESS) Information Technology Enterprise Solution Services (ITES-3S) contract vehicle on 24 April 2024. The TOR had an original solicitation closing date of 29 May 2024 with an amended solicitation closing date of 3 June 2024 to provide responses to industry questions. The TOR received [REDACTED] proposals. [REDACTED]

8. Market Research: Market research was conducted [REDACTED] from 01 May 2023 to 01 September 2023 to determine the possible range of sources available to fulfill the requirements of the re-compete effort. Market research included reviewing Category Management (CM) categories, querying Government-wide databases of contracts and other procurement instruments intended for use by multiple agencies available at <https://www.contractdirectory.gov/contractdirectory/> and other Government and

commercial databases that provide information relevant to agency acquisitions. Based on the market research, it was determined that the CHESS ITES-3S contract vehicle, an available Category Management (CM) Government-wide Acquisition Contract, possessed several vendors capable of meeting the Government's requirements. A Request for Information (RFI) was posted to all ITES-3S contract holders from 18 October 2023 to 01 November 2023. In response to the RFI, [REDACTED] companies provided capability information, including [REDACTED] other than small businesses and [REDACTED] small businesses. Overall, market research determined that multiple vendors are capable of providing IT Modernization Support Services for the re-compete effort.

The services required of the bridge extension do not differ from those provided by the current task order or those sought in the re-compete effort. As such, market research conducted for the re-compete effort is indicative of the sources available to fulfill the bridge extension requirement. [REDACTED] revalidated the market research in January 2025 and confirmed that the findings are still applicable to the subject requirements. Nevertheless, pursuing any of these sources for the subject extension would result in unacceptable delays. Only the incumbent, Agile Defense Inc., can fulfill the Government's requirement in the current timeline needed to issue the re-compete order. Agile Defense Inc. currently provides the complex IT services required by ARL. In doing so, it possesses specialized knowledge of internal ARL operations and provides qualified personnel to accomplish ARL's mission goals for IT modernization. As the incumbent, no transition period is needed to begin performance.

Overall, Agile Defense Inc. is capable of continuing to fulfill the requirements of the current task order, as required for the subject bridge extension.

9. Other Facts

a. Procurement History:

- (1) Contract & Award Date: W911QX19F0075 awarded on 27 September 2019
- (2) Competitive status of this action: 100% Small Business Set-Aside utilizing CHESS ITES-3H contract vehicle
- (3) Authority: N/A
- (4) One (1) GAO level protest (B-418189.1), partially dismissed before being withdrawn in November 2019.

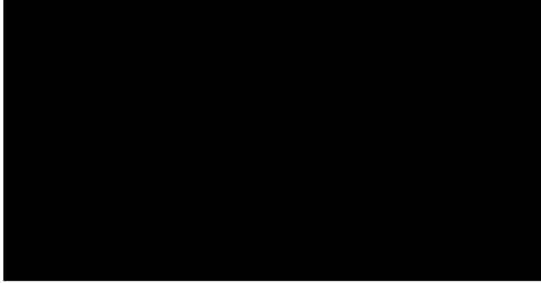
- (1) Contract & Award Date: W911QX15F0014 P00028 awarded on 8 August 2019
- (2) Competitive status of this action: Sole Source
- (3) Authority: 10 U.S.C. 2304c(b)(1) as implemented by FAR Part 16.505(b)(2)(i)(A) – The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays.
- (4) ARL required a bridge extension to allow time to complete the Source Selection for the re-compete order while it continued to provide [REDACTED] services. Numerous re-writes of the technical, management, and price realism findings were required of the evaluation team.
- (5) The base contract, W911QX15F0014, was accomplished using Fair Opportunity Provided through NIH CIO-SP3 MATOC (see below). However, a bridge extension had been issued prior to it being awarded due to protest.

- (1) Contract & Award Date: W911QX15F0014 awarded on 16 April 2015
- (2) Competitive status of this action: Fair Opportunity Provided through NIH CIO-SP3 MATOC
- (3) Authority: N/A
- (4) Two (2) GAO level protests (B-411459; B-411459.2; B-411459.3; B-411459.4; B-411459.5; B-411459.6) that were ultimately denied on all grounds.

- (1) Contract & Award Date: W911QX14F0021 awarded on 9 August 2014
- (2) Competitive status of this action: Sole Source
- (3) Authority: 10 U.S.C. 2304c(b)(2) as implemented by FAR 16.505(b)(2)(i)(B) – Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.
- (4) ARL required a bridge extension to allow ACC-APG time to present their response to the GAO protest while it continued to provide [REDACTED] services.

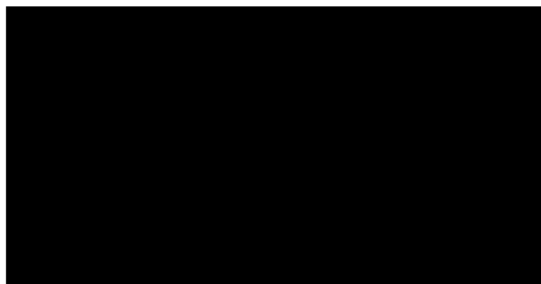
10. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Signer's Title: [REDACTED]



11. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Signer's Title: [REDACTED]



12. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable.

A determination of fair and reasonable cost will be made using the IGE provided by the COR and by conducting a cost realism analysis of the Contractor's proposal upon receipt in accordance with FAR 15.305(a)(1) and 15.404-1(d).

This determination will be made using the following:

- ☒ Cost analysis
- ☐ Price analysis
- ☐ Should-cost
- ☒ IGE
- ☐ Audit:
- ☐ Other:

As a part of this basis, certified cost or pricing data:

- ☒ Will be required.
- ☐ Will not be required and the following exception applies (FAR 15.403):

☐ Prices that will be agreed upon are based on adequate price competition.

___Prices that were established during the original competition that are not subject to negotiation.

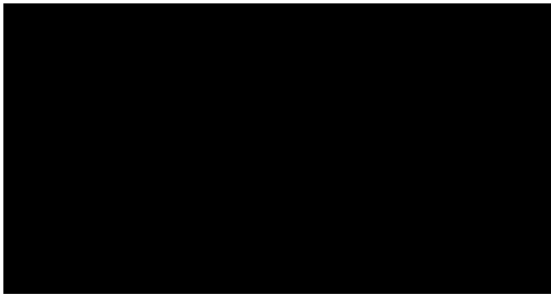
___Prices that will be agreed upon are based on prices set by law or regulation.

___A commercial item is being acquired.

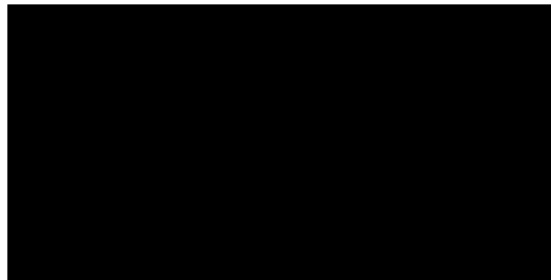
___A waiver has been granted by the head of the contracting activity (HCA) in accordance with DFARS PGI 215.403-1.

___The contract action is a modification to a contract or subcontract for commercial item(s).

___The estimated cost of the contract action is less than the threshold for certified cost or pricing data.



13. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.



CUI

Control No: [REDACTED]

Approval

Based on the foregoing justification, I hereby approve the procurement of the ARL IT Modernization Support Services three (3) month bridge extension for an estimated cost of [REDACTED] on an other than full and open competition basis pursuant to the authority of 10 U.S.C. 3406(c)(3) as implemented by FAR Part 16.505(b)(2)(i)(C) – The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

[REDACTED]

CUI